

STATE OF NEW YORK

5319--C

2025-2026 Regular Sessions

IN ASSEMBLY

February 13, 2025

Introduced by M. of A. PHEFFER AMATO, KASSAY, GRIFFIN, LAVINE -- read once and referred to the Committee on Labor -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Labor in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again amended on third reading, ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the workers' compensation law, in relation to providing family leave to persons recovering from a pregnancy loss

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 15 of section 201 of the workers' compensation
2 law, as added by section 2 of part SS of chapter 54 of the laws of 2016,
3 is amended to read as follows:

4 15. "Family leave" shall mean any leave taken by an employee from
5 work: (a) to participate in providing care, including physical or
6 psychological care, for a family member of the employee made necessary
7 by a serious health condition of the family member; or (b) to bond with
8 the employee's child during the first twelve months after the child's
9 birth, or the first twelve months after the placement of the child for
10 adoption or foster care with the employee; or (c) to recover from a
11 pregnancy loss at or after twenty weeks of gestation if the employee who
12 experienced such pregnancy loss would have been eligible to take family
13 leave benefits under paragraph (b) of this subdivision but is deemed
14 ineligible for family leave benefits under such paragraph as a result of
15 such pregnancy loss; or (d) because of any qualifying exigency as inter-
16 preted under the family and medical leave act, 29 U.S.C.S §
17 2612(a)(1)(e) and 29 C.F.R. S.825.126(a)(1)-(8), arising out of the fact
18 that the spouse, domestic partner, child, or parent of the employee is

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 on active duty (or has been notified of an impending call or order to
2 active duty) in the armed forces of the United States.
3 § 2. This act shall take effect on the ninetieth day after it shall
4 have become a law.